

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

STEVEN SIMON,

Plaintiff designates Kings County
as the place of trial

Plaintiff,

Basis of venue is
county of occurrence

-against-

THE CITY OF NEW YORK,
P.O. ADAN SUAZORODAS,
P.O. LARRY SIMPSON and
P.O. MARC FONTANA,SUMMONS

Defendants.

----- X

To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 7, 2022

SIVIN, MILLER & ROCHE, LLP

By Edward SivinEdward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300The City of New York: c/o NYC Corp. Counsel, 100 Church St., New York, NY 10006P.O. Adan Suazorodas: c/o NYPD 70th Pct., 70-154 Lawrence Ave., Brooklyn, NYP.O. Larry Simpson: c/o NYPD 70th Pct., 70-154 Lawrence Ave., Brooklyn, NYP.O. Marc Fontana: c/o NYPD 70th Pct., 70-154 Lawrence Ave., Brooklyn, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

STEVEN SIMON,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
P.O. ADAN SUAZORODAS,
P.O. LARRY SIMPSON and
P.O. MARC FONTANA,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).
4. That at all times herein mentioned, defendant NYPD Officer Adan Suazorodas (Suazrorodas) was and is a police officer employed by the NYPD.
5. That at all times herein mentioned, Suazorodas was acting within the course and scope of his employment with the NYPD.

6. That at all times herein mentioned, Suazorodas was acting under color of state law.

7. That at all times herein mentioned, defendant NYPD Officer Larry Simpson (Simpson) was and is a police officer employed by the NYPD.

8. That at all times herein mentioned, Simpson was acting within the course and scope of his employment with the NYPD.

9. That at all times herein mentioned, Simpson was acting under color of state law.

10. That at all times herein mentioned, defendant NYPD Officer Marc Fontana (Fontana) was and is a police officer employed by the NYPD.

11. That at all times herein mentioned, Fontana was acting within the course and scope of his employment with the NYPD.

12. That at all times herein mentioned, Fontana was acting under color of state law.

13. That prior to the institution of this action, and within ninety days of the accrual of the causes of action herein, a notice of claim and intention to sue was duly served upon and filed with defendants; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon; and this action is being commenced within one year and ninety days after the causes of action accrued herein.

THE FACTS

14. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

15. That on or about the late evening of November 27, 2021, going into the early morning of November 28, 2021, plaintiff was a lawful pedestrian at or near the intersection of Flatbush Avenue and Beverly Road, in Brooklyn, NY.

16. That while plaintiff was a lawful pedestrian at the aforementioned location, he was forcibly seized and detained by NYPD officers, including Suazorodas, Simpson, and Fontana (hereinafter referred to collectively as “the officers”), without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime or criminal violation.

17. That upon seizing plaintiff, the officers then forcibly and invasively searched plaintiff, without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime or criminal violation.

18. That the officers also engaged in a use of excessive and unjustified force against plaintiff, including but not limited to grabbing and pulling plaintiff’s genitalia and forcibly slapping a cell phone from plaintiff’s hand.

19. That each of the officers acted jointly and in concert with one another.

20. That each of the officers observed the illegal and unconstitutional conduct in which his fellow officers engaged, each had reasonable opportunities to intervene to prevent and/or stop that conduct, and each deliberately and intentionally failed and refused to do so.

21. That the actions of the officers were intentional and malicious in nature.

22. That as a result of the actions of the officers, plaintiff suffered significant emotional and physical injuries, including but not limited to a recurrence of a pre-existing hernia, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred medical and other expenses, and has been otherwise damaged.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

23. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

24. That the aforementioned actions of the officers constituted an assault and battery upon plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment Under NY State Law)

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. That the aforementioned actions of the officers constituted a false arrest and a false imprisonment of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Arising from Fourth & Fourteenth Amendment Violations)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforementioned actions of the officers in searching and seizing, assaulting and battering, and falsely arresting and imprisoning plaintiff constituted illegal searches and seizures of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Arising from Failure to Intervene)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of the officers in failing to intervene to prevent and/or stop the illegal conduct of their fellow officers constituted a violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

31. That all of the causes of action herein fall within one or more of the exceptions set forth in CPLR Article 16 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against the officers, and attorney's fees against the officers pursuant to 42 U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
October 7, 2022

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
October 7, 2022

Edward Sivin

EDWARD SIVIN